



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL SECRETARY

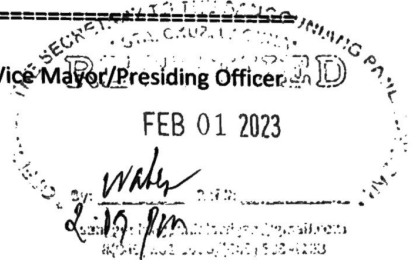
2nd Floor City Annex Bldg., Brgy. Zapote, City of Biñan, Laguna
(049) 513-5063 / 513-5064



ORDINANCE APPROVED BY THE CITY COUNCIL OF BIÑAN, LAGUNA IN ITS REGULAR SESSION HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF LAGUNA DATED JANUARY 23, 2023.

PRESENT:

Hon. JONALINA R. REYES	- Acting City Vice Mayor/Presiding Officer
Hon. LIBUNERO O. ALATIIT	- Councilor
Hon. ROMMEL R. DICDICAN	- Councilor
Hon. FLAVIANO D. PECAÑA, JR.	- Councilor
Hon. CHRISTOPHER A. ALBA	- Councilor
Hon. JAYSON A. SOUZA	- Councilor
Hon. VICTOR L. CARIÑO	- Councilor
Hon. ELMARIO B. DIMARANAN	- Councilor
Hon. RAFAEL L. CARDEÑO, JR.	- Councilor
Hon. ALVIN Z. GARCIA	- Councilor
Hon. ELVIS L. BEDIA	- Councilor
Hon. RODOLFO C. MONTAÑEZ, JR.	- ABC-Federation President
Hon. MA. ANGELICA QUERUBIN A. ALONTE	- SK-Federation President
GERONIMO D. ROMANTIGUE, MDMG	- City Council Secretary



GUESTS:

Legislative Staff of the City Government of Biñan

ABSENT:

Hon. ANGELO B. ALONTE	- City Vice Mayor (Vacation Leave)
Hon. JOSE FRANCISCO RUBEN P. YATCO	- Councilor (Absent)

CITY ORDINANCE NO. 5-(2023)

AN ORDINANCE AUTHORIZING CITY MAYOR ATTY. WALFREDO R. DIMAGUILA JR. TO INITIATE EXPROPRIATION PROCEEDINGS FOR THE ACQUISITION OF A PARCEL OF LAND CONSISTING OF 27,547 SQUARE METERS, MORE OR LESS, COVERED BY TCT NO. T-190067 UNDER THE NAME OF DEAN COLMENAR LOCATED AT BARANGAY LANGKIWA, CITY OF BIÑAN, LAGUNA TO BE USED FOR THE HOUSING PROJECT OF THE CITY GOVERNMENT, PROVIDING FUNDS THEREFOR, AND FOR OTHER PURPOSES.

Author: HON. ELMARIO B. DIMARANAN

WHEREAS, Section 16 of Republic Act No. 7160 ("R.A. 7160") otherwise known as the Local Government Code of the Philippines provides that, every Local Government Unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare.

WHEREAS, Section 17 (b)(3)(viii) in relation to Section 17 (b)(4) of R.A. 7160 provides that, the City has the duty and responsibility of constructing infrastructure facilities intended primarily to service the needs of its residents including the construction of low-cost housing and other mass dwellings;

WHEREAS, Section 19 of the Local Government Code of 1991 provides;

A local government unit may, through its chief executive and acting pursuant to an ordinance, exercise the power of eminent domain for public use, or purpose or welfare for the benefit of the poor and the landless, upon payment of just compensation, pursuant to the provisions of the Constitution and pertinent laws: Provided, however, That the power of eminent domain may not be exercised unless a valid and definite offer has been previously made to the owner, and such offer was not accepted: Provided, further, That the local government unit may immediately take possession of the property upon the filing of the expropriation proceedings and upon making a deposit with the proper court of at least fifteen percent (15%) of the fair market value of the property based on the current tax declaration of the property to be expropriated: Provided, finally, That, the amount to be paid for the expropriated property shall be determined by the proper court, based on the fair market value at the time of the taking of the property.

WHEREAS, the taking of the above-described private property is for public use and purpose;

WHEREAS, to acquire the abovementioned private property, a valid and definite offer had been previously made to the heirs of DEAN COLMENAR, but such offer was rejected;

WHEREAS, through the exercise of the power of eminent domain, the affected private property shall be acquired by the Local Government Unit of the City of Biñan through expropriation proceedings;

NOW, THEREFORE, be it ordained by the Sangguniang Panlungsod of the City of Biñan, Province of Laguna, in a session assembled:

SECTION 1. TITLE – This Ordinance shall be entitled, AN ORDINANCE AUTHORIZING CITY MAYOR ATTY. WLFREDO R. DIMAGUILA JR. TO INITIATE EXPROPRIATION PROCEEDINGS FOR THE ACQUISITION OF A PARCEL OF LAND CONSISTING OF 27,547 SQUARE METERS, MORE OR LESS, COVERED BY TCT NO. T-190067 UNDER THE NAME OF DEAN COLMENAR LOCATED IN BRGY. LANGKIWA, CITY OF BIÑAN, LAGUNA TO BE USED FOR THE HOUSING PROJECT OF THE CITY GOVERNMENT, PROVIDING FUNDS THEREFOR, AND FOR OTHER PURPOSES.

SECTION 2. SCOPE – Authority is hereby granted to the Local Chief Executive to initiate expropriation proceedings over the property in the name of DEAN COLMENAR with an area of 27,547 square meters located in Brgy. Langkiwa, to be used for the Housing Project of the City Government. For this purpose, the City Mayor may authorize the Office of the City Legal Officer – Biñan City to represent him in the expropriation proceedings.

SECTION 3. FUNDING – The amount of **EIGHTY-TWO MILLION SIX HUNDRED FORTY-ONE THOUSAND PESOS (PHP82,641,000.00)** more or less, shall be allocated for the Expropriation Proceedings of the subject property.

SECTION 4. INFORMATION DISSEMINATION – Let the copies of this Ordinance be furnished to the Sangguniang Panlalawigan and other concerned offices for Information, guidance and appropriate action.

SECTION 5. EFFECTIVITY – This Ordinance shall take effect upon its approval.
UNANIMOUSLY APPROVED.

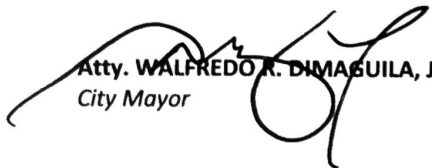
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. JONALINA R. REYES
Acting City Vice Mayor/Presiding Officer

APPROVED BY:


Atty. WALFREDO R. DIMAGUILA, JR.
City Mayor